

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT STATUS REPORT 4 (DECEMBER 2025)

Pursuant to 46 C.F.R. §502.141(h), the July 1, 2025 Scheduling Order, and the November 17, 2025 Order Granting in Part Complainant’s Second Motion for Enlargement of Time, Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (collectively, “Respondents” or “OOCL”) (and collectively with SEA, the “Parties”), by their respective undersigned counsel, have conferred and submit this

joint status report. As directed by the Order, the Parties each report on their respective discovery processes:¹

Claimant, Samsung Electronics America, Inc.

1. Discovery:

SEA has completed its production of documents. SEA has also reviewed and analyzed the discovery produced by OOCL to date for completeness and raised several issues with OOCL's production. As of this date, SEA awaits further document production and updated responses to interrogatories from OOCL.

As an overview of the status of the ongoing discovery, SEA has used the time since the Joint Status Report of September 2, 2025 to review and analyze the data requested by OOCL, narrow its results to responsive documents, and then process and produce the requested documentation.

With respect to discovery progress between the Parties:

- OOCL produced an initial batch of documents on August 25th, however its initial tranche of 14,966 pages, consisting largely of emails to or from the Respondents' U.S. agent, OOCL (USA) Inc., was not in native format, did not have the necessary metadata, and did not have the attachments referenced in the emails;
- On September 5, OOCL sent SEA a letter outlining what it had identified as deficient responses in SEA's responses to Interrogatories and Requests for Production. The Parties met on September 17 and discussed SEA's responses to OOCL's Interrogatories and Request for Production, as well as revisions to several of OOCL's

¹ Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

Interrogatories, the draft ESI Protocol, the draft Confidentiality Stipulation, document translations, a possible Joint Motion for Extension of Time, and OOCL's failure to provide the native files for its first produced tranche of documents. That same day, SEA circulated a draft Confidentiality Stipulation to OOCL for comment, noting that agreement on these issues was required before SEA could produce documents.

- On September 17, OOCL provided a draft ESI Protocol;
- On September 23, SEA sent OOCL a letter identifying deficiencies in OOCL's responses to SEA's Interrogatories and Requests for Production. SEA further filed its Motion for Enlargement of Time;
- On September 26, OOCL produced an additional tranche of documents with a cumulative production of 9,986 documents composed of 43,174 pages;
- On September 29, the Parties reached agreement on the Confidentiality Stipulation and ESI protocol. Those agreements were filed with the Secretary the same day;
- On September 30, an Order regarding both the Confidentiality Stipulation and ESI Protocol was entered. SEA further filed its Second Motion for Enlargement of Time and produced its initial tranche of 45,602 documents, composed of 59,844 pages;
- On October 1, SEA produced Supplemental Responses and Objections to OOCL's revised Interrogatories and First Request for Production of Documents;
- On October 2, OOCL produced additional electronic metadata and native format documents for its initial tranche of documents;
- On October 3, the Parties met in connection with the deficiencies identified by SEA in OOCL's responses to its Interrogatories and Requests for Production. OOCL agreed that it would provide additional documentation and information in response to

clarifications provided during this meeting, although no such additional documentation has yet been received;

- On November 13, SEA produced a finalized list of OOCL charges at issue by container, with container numbers, Bills of Lading numbers, invoice numbers, dates, amounts, charge type, trucking work order numbers, and delivery locations;
- On November 14, SEA produced an additional 39,653 documents, composed of 213,111 pages. SEA also sent OOCL a letter outlining OOCL's outstanding discovery deficiencies from the Parties' Meet and Confer of October 3, as well as additional deficiencies identified with OOCL's current production;
- On November 19, the Parties met regarding the deficiencies noted by SEA with OOCL's discovery responses to-date. OOCL's counsel confirmed that OOCL would review SEA's list of disputed charges and OOCL's search parameters, and would provide additional responses and, if appropriate, additional production responsive to SEA's requests;
- On November 24, SEA produced an additional 154,899 documents, composed of 785,796 pages.

As outlined in SEA's Motions for Enlargement of Time (September 23rd and September 30), the factual record necessary to pursue this matter in light of the number of charges involved remains both extensive and complex. While several million documents were initially identified in SEA's review as possibly responsive, that number was reduced through refined searches and extensive review. SEA has now concluded its document production.

To date, SEA has produced 240,155 documents composed of 1,058,752 pages. OOCL has produced 9,986 documents composed of 43,174 pages.

SEA's letter of November 14 outlined the deficiencies that remain outstanding after the Parties' October 3rd Meet and Confer as well as the extensive deficiencies SEA has identified in OOCL's September 26th production; for example, OOCL's production has not included the relevant sea waybills, relevant invoices, shipment-level specific documentation, and other relevant communications by the Respondents. SEA is particularly concerned that OOCL appears to have limited its discovery searches to its U.S. agent, OOCL (USA) Inc., and the searches do not appear to have been made of the actual Respondents in this matter: Orient Overseas Container Line Limited, headquartered in Hong Kong, and OOCL (Europe) Limited, headquartered in England. Specifically, SEA has found no production by the Respondents, only their U.S. agent. SEA also raised the issue of OOCL's objections and lack of responses to various interrogatories.

The Parties met and conferred on November 19 regarding the deficiencies identified by SEA and OOCL's counsel confirmed during the conference that OOCL would review SEA's list of disputed charges and OOCL's search parameters, and would provide additional responses and, if appropriate, additional production responsive to SEA's requests.

In light of the challenges faced by both Parties in conducting discovery into over 4,000 charges at issue and the noted deficiencies in OOCL's production and discovery responses, SEA respectfully submits that additional time should be provided to enable OOCL to complete, and for SEA to obtain, the necessary production and responses to discovery, particularly in light of the potential delays with cross-border data collection.

SEA is mindful of the current March 30, 2026 deadline for issuance of an Initial Decision in this matter and wishes to resolve this matter as expeditiously as possible. SEA also recognizes that a full record of discovery is necessary to facilitate a resolution in this matter. While SEA is

the Complainant, the disputed charges all involve containers that were in the custody and control of the Respondents on store-door terms during the time that the disputed charges were incurred, and therefore SEA is compelled to request that OOCL provide full responses and productions to document the reasons for the relevant delays affecting each container. SEA therefore respectfully requests additional time to obtain those full responses and productions from OOCL so the record may be fully developed. Accordingly, the Parties have proposed an Amended Scheduling Order below which they expect reflects a realistic schedule for the completion of discovery and briefing in this matter.

2. SEA's Motion to Dismiss OOCL's Amended Counterclaim & SEC's Motion to Dismiss OOCL's Amended Third Party Complaint

OOCL filed an Amended Counterclaim against SEA on August 13, 2025. SEA moved to dismiss the Amended Counterclaim on September 8, 2025. OOCL filed its opposition on September 26, 2025, and SEA filed its Reply in Further Support of its Motion to Dismiss Respondents' Amended Counterclaim on October 2, 2025.

On September 22, 2025, the Presiding Officer granted OOCL's Unopposed Motion for Leave to File Amended Third-Party Complaint against Samsung Electronics Company, Ltd. ("SEC"), to be filed by September 29, 2025, and permitted SEC to file an Amended Motion to Dismiss the Amended Third-Party Complaint no later than October 20, 2025, with OOCL's response due no later than November 4th, and SEC's Reply due no later than November 12th. Those filings were timely made in accordance with the stated deadlines.

The Commission was impacted by the federal government shutdown from October 1, 2025 through November 12, 2025; however, in an Order of November 26, 2025, the Presiding Officer granted the motions to dismiss the Amended Counterclaim and the Amended Third-Party

Complaint. In OOCL's opposition memoranda to the motions to dismiss, it had suggested it would appeal any such dismissals and further delay the proceedings. OOCL has not yet advised whether it still intends to do so after reviewing the Order.

SEA intends to file a petition for attorney fees upon the finalization of the Order of November 26, 2025, in accordance with 46 C.F.R. § 502.254.

3. Mediation / Narrowing of Issues

The Parties have conducted discussions regarding a possible path to a negotiated resolution of the matter and have expressed an interest in pursuing mediation. At present OOCL continues to evaluate the matter. SEA is hopeful that the most recent meet-and-confer, at which SEA noted the completion of its production and discovery responses and detailed the significant gaps in OOCL's discovery responses, may yet encourage OOCL to assess its position and facilitate productive negotiations.

Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Limited

1. Discovery:

OOCL summarizes below how discovery has progressed in this matter:

- On September 5, 2025, OOCL notified SEA of its discovery deficiencies by letter.
- On September 17, the Parties conferred on SEA's discovery deficiencies.
- On September 18, OOCL by letter provided the additional clarifications to its initial discovery requests requested by SEA on September 17.
- On September 26, 2025, OOCL completed its production of documents.
- On September 30, 2025, the time for the production of documents ended.
- On September 30, 2025, SEA made its first production of documents, producing 59,844 pages.

- On September 30, 2025, SEA unilaterally moved to extend discovery deadlines and the procedural schedule by 30 days.
- On October 1, 2025, the Parties were advised by the Office of the Administrative Law Judges that the Federal Maritime Commission had suspended operations due to a lapse in appropriations.
- On October 3, 2025, SEA supplemented its responses to OOCL's Initial Interrogatories.
- On October 7, OOCL served its Response to SEA's Motion for an Extension of Time.
- On November 13, 2025, the Parties were advised that the Commission had re-opened.
- On November 14, 2025, more than 15 days after its final production was due under its requested extended deadline, SEA made its second production of documents, producing 213,111 pages.
- On November 17, the Presiding Officer issued an Order granting SEA's motion in part.
- On November 24, 2025, SEA made its third and final production of documents, producing 785,796 pages.

OOCL has timely responded to SEA's Initial Discovery requests, and completed its production of documents on September 26, 2025 according to the procedural schedule set by the Presiding Officer. In contrast, SEA took advantage of the lapse in the appropriations shutdown to effectively extend its deadlines further, all to the prejudice of OOCL.

SEA has been advantaged by its production delays, to the prejudice of OOCL. Since September 26, it has had the time not only to review the documents produced by OOCL, but to examine them and assert lengthy and largely meritless deficiencies in OOCL's production, to which OOCL is responding in a timely manner.

OOCL, on the other hand, has been prejudiced by SEA's unreasonable discovery delays. SEA has obviously postponed the production of its own documents to OOCL until the 11th hour. It produced no documents to OOCL whatsoever before September 30, 2025, as required by the Scheduling Order, which OOCL complied with. Thereafter, rather than complete its production within the additional 30 days which it had requested in its October 1, 2025 Motion, or making rolling productions of documents to OOCL in an organized and metered manner, it was not until **November 14** and **November 24** that SEA produced additional documents, dumping over one million pages of documents on OOCL, well past the presumably-extended discovery deadline of November 1.

The consequence of SEA's delay is that SEA has been able to review ***all*** of OOCL's documents at leisure for ***two months***, while OOCL is limited to only a few days to review the overwhelming bulk of SEA's production.

Indeed, for most of the proceeding, OOCL has not even known what specific shipments or what specific charges SEA asserted in the Amended Complaint. This is especially problematic given that claims of unreasonable detention and demurrage charges must be proven on a shipment-by-shipment, charge-by-charge basis. SEA refused to identify the involved shipments until November 13, 2025, less than three weeks ago.

While production of the list of shipments came inexcusably late, the Parties have agreed that, going forward, discovery would be limited to facts relating to the movement of SEA's cargos through the Long Beach Container Terminal and Maher Terminal, New York.

2. SEA's Pending Motion to Dismiss OOCL's Counterclaim and SEC's Pending Motion to Dismiss OOCL's Third Party Complaint.

The Presiding Officer has ruled on SEA's Motion to Dismiss the Counterclaim and SEC's Motion to Dismiss the Amended Third Party Complaint. OOCL is evaluating whether to file

Exceptions to these rulings. Motion practice with respect to the Counterclaim and Amended Third Party Complaint has not delayed the proceedings with respect to SEA's Verified Amended Complaint, as OOCL has continued to abide by the discovery schedule as set forth by the Presiding Officer.

3. Mediation

OOCL has advised that it would consider further settlement negotiations and, potentially mediation, if it believes the latter process would be productive, provided that SEA completes its discovery obligations and produces not just a list of the shipments for which it is claiming, but an description of the delays which gave rise to the assessment of demurrage or detention and what OOCL did to cause or contribute to those charges.

JOINT PROPOSED DISCOVERY SCHEDULE

Event	Deadline
Complete Document Productions	January 5, 2026
Joint Status Report 5	January 5, 2026
Last Day to File Motions to Compel Discovery	January 23, 2026
Complete Fact Depositions	March 27, 2026
Service of Expert Reports by Complainant	April 17, 2026
Service of Rebuttal Expert Reports by Respondent	May 18, 2026
Completion of Expert Depositions	June 12, 2026
Complainant's brief, proposed findings of fact, and appendix	July 13, 2026
Respondent's brief, responses to proposed findings of fact, proposed findings of fact, and appendix	August 13, 2026
Complainant's reply brief and responses to proposed findings of fact	August 27, 2026

Dated: December 1, 2025

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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Dated: December 1, 2025

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